

Wageningen University NL WAGENIN01

Droevendaalsesteeg 2
6708 PB Wageningen
The Netherlands

Called hereafter "the institution", represented for the purposes of signature of this agreement by institutional coordinator or Erasmus administrators, of the one part, and:

Commodity Supplemental Food Program
Agreement Between Contracting Entity and Subdistributing Agency

A **contracting entity** (CE) is an organization that contracts with the Texas Department of Agriculture to receive, store, handle, and deliver United States Department of Agriculture (USDA) Foods. A **subdistributing agency**, usually a food bank, contracts with a CE to receive, store, handle, and deliver USDA Foods.

Name of <u>Contracting Entity (CE)</u>	Email Address of CE
Registration number _____	_____
Address of CE (Street, City, State, ZIP)	<u>Please fill in your e-mail address and indicate at which you want to receive the correspondence (tick the right box)</u> ☐ WUR E-mail ☐ Private E-mail Area Code and Telephone Number _____
<u>Sending your Learning Agreement (Please read and tick to confirm)</u> ☐ I am aware that I have to send a fully signed Learning Agreement before departure (The Erasmus+ grant will only be paid until we receive all the required documents) _____	
Gender	(Male/Female)
Date of birth	
Nationality	
Previous Erasmus experience Mailing Address (if different)	Yes (if yes, please specify how many months and during BSc or MSc or PhD)/No Fax Area Code and Telephone Number _____
Address _____	_____
Zip code + City	
Phone	
Study Cycle during exchange	BSc /MSc/PhD
Study programme	
Code ISCED*	
Number of completed higher education study years	
Name receiving institution	
Country	
Study period abroad	From _____ to _____ (dd-mm-year)
Account/ IBAN number	
BIC. Only for bank accounts outside the Netherlands	

*see website- Download ISCED codes

To be completed by Erasmus Administrator:	Email Address of Subdistributing Agency
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☐ a financial support from EU funds ☐ a zero-grant from EU funds ☐ a financial support from EU combined with a zero-grant period including _____ zero grant days <u>Student with:</u> <u>The participant shall have an Erasmus+ status for _____ days.</u> <u>The financial support from EU funds for the mobility period has an amount of EUR _____</u> <u>corresponding to EUR _____ per 30 days.</u> <u>The financial support includes: ☐Special needs support Name of Subdistributing Agency</u> _____	
<u>Address of Subdistributing Agency (Street, City, State, ZIP)</u> _____	_____ <u>Area Code and Telephone Number</u> _____
<u>Mailing Address (if different)</u> _____	_____ <u>Fax Area Code and Telephone Number</u> _____

Called hereafter “the participant” of the other part, have agreed the Special Conditions and annexes below which form an integral part of this agreement ("the agreement"):

Annex - Learning

Agreement for Erasmus+ mobility for studies

Annex - General Conditions

Annex - Erasmus Student Charter

The terms set out in the Special Conditions shall take precedence over those set out in the annexes.

SPECIAL CONDITIONS

ARTICLE 1 – SUBJECT MATTER OF THE AGREEMENT

- 1.1 Wageningen University shall provide support to the participant for undertaking a mobility activity for studies and traineeship under the Erasmus+ Programme.
- 1.2 The participant accepts the financial support in the amount specified in article 3.1 and undertakes to carry out the mobility activity for studies as described in the Learning Agreement.
- 1.3. Amendments to the agreement, including to the start and end dates, shall be requested and agreed by both parties through a formal notification by letter or by electronic message.

ARTICLE 2 – ENTRY INTO FORCE AND DURATION OF MOBILITY

- 2.1 The agreement shall enter into force on the date when the last of the two parties signs.
- 2.2 The mobility period shall start on start date at the earliest and end on end date at the latest. The start date of the mobility period shall be the first day that the participant needs to be present at the receiving organisation or the first day of language course attendance outside the receiving organisation./The start date of the mobility period shall be the first day of language course attendance outside the receiving organisation. The end date of the period abroad shall be the last day the participant needs to be present at the receiving organisation.
- 2.3 The participant shall receive a financial support from EU funds for (see page 1) days.
- 2.4 The total duration of the mobility period shall not exceed 12 months, including any zero grant period.
- 2.5 Demands to the institution to extend the period of stay should be introduced at least one month before the end of the mobility period.
- 2.6 The Transcript of Records (or statement attached to these documents) shall provide the confirmed start and end dates of duration of the mobility period.

ARTICLE 3 – FINANCIAL SUPPORT

- 3.1 The financial support for the mobility period has an amount of EUR (see page 1) corresponding to EUR (see page 1) per 30 days.
- 3.2 The final amount for the mobility period shall be determined by multiplying the number of days/months of the mobility specified in article 2.3 with the rate applicable per day/month for the receiving country concerned. In the case of incomplete months, the financial support is calculated by multiplying the number of days in the incomplete month with 1/30 of the unit cost per month.
- 3.3 The reimbursement of costs incurred in connection with special needs, when applicable, shall be based on the supporting documents provided by the participant.
- 3.4 The financial support may not be used to cover similar costs already funded by Union funds.
- 3.5 Notwithstanding article 3.4, the grant is compatible with any other source of funding including revenue that the participant could receive working beyond its studies/traineeship as long as he or she carries the activities foreseen in the Learning Agreement.
- 3.6 The financial support or part thereof shall be repaid if the participant does not comply with the terms of the agreement. However, reimbursement shall not be requested when the participant has been prevented from completing his/her mobility activities as described in Annex I due to force majeure. Such cases shall be reported by the sending institution and accepted by the NA.

ARTICLE 4 – PAYMENT ARRANGEMENTS

- 4.1 Within 30 days following the signature of the agreement by both parties, and no later than the start date of the mobility period or upon receipt of confirmation of arrival by the beneficiary, a pre-financing payment shall be made to the participant representing 70% of the amount specified in Article 3. In case the participant did not provide the supporting documents in time according to the sending institution timeline, a later payment of the pre-financing can be exceptionally accepted.
- 4.2 If the payment under article 4.1 is lower than 100% of the maximum grant amount, the submission of the on-line EU survey and other documents required at www.wur.eu/exchange shall be considered as the participant's request for payment of the balance of the financial support. The institution shall have 45 calendar days to make the balance payment or to issue a recovery order in case a reimbursement is due.

ARTICLE 5 – INSURANCE

- 5.1 The participant shall have adequate insurance coverage. Wageningen UR has arranged a collective continuous travel insurance agreement for students of Wageningen UR. This insurance covers a maximum travel period of 550 days, including luggage and accidents. It is the responsibility of the student to be registered in the population register in the Netherlands during the stay abroad. **Health insurance** Usually basic coverage is provided by the national health insurance of the student as well during his/her stay in another EU country through the European Health Insurance Card. However, the coverage of the European Health Insurance Card or private insurance may not be sufficient, especially in case of repatriation and specific medical intervention. In that case, a complementary private insurance might be useful. This is the responsibility of the student.

ARTICLE 6 – ONLINE LINGUISTIC SUPPORT Only applicable for mobilities for which the main language of instruction or work is Bulgarian, Croatian, Czech, Danish, Dutch, English, Estonian, Finnish, French, German, Greek, Hungarian, Irish Gaelic, Italian, Latvian, Lithuanian, Maltese, Polish, Portuguese, Romanian, Slovak, Slovenian, Spanish, or Swedish (or additional languages once they become available in the Online Linguistic Support (OLS) tool), with the exception of native speakers.

- 6.1. The participant must carry out the OLS language assessment before and at the end of the mobility period. NB: participants with a C2 level at the initial language assessment are exempted from taking the final language assessment. The completion of the online assessment before departure is a pre-requisite for the mobility, except in duly justified cases
- 6.2 [Only applicable to participants following an OLS language course] The participant shall follow the online [see Learning Agreement] language course in order to prepare for the mobility period abroad, using the licence. The participant shall immediately inform the institution if he/she is unable to carry out the online course.
- 6.3 The payment of the final instalment of the financial support is subject to the submission of the compulsory OLS language assessment at the end of the mobility

ARTICLE 7 – EU SURVEY

- 7.1. The participant shall complete and submit the on-line EU Survey within 30 days from the end date of the mobility period. Participants who fail to complete and submit the online EU Survey may be required by their institution to partially or fully reimburse the financial support received.

7.2 A complementary online survey may be sent to the participant allowing for full reporting on recognition issues.

ARTICLE 8 – LAW APPLICABLE AND COMPETENT COURT

8.1 The Agreement is governed by the national law of the Netherlands.

8.2 The competent court determined in accordance with the applicable national law shall have sole jurisdiction to hear any dispute between the institution and the participant concerning the interpretation, application or validity of this Agreement, if such dispute cannot be settled amicably.

SIGNATURES

For the participant
[name]

For Wageningen University
institutional coordinator or Marleen
Domburg / Daisy Bravo / Sofie Sweers –
Erasmus administrators

signature

signature

Done at [place], [date]

Done at Wageningen, date

Annex

GENERAL CONDITIONS

Article 1: Liability

Each party of this agreement shall exonerate the other from any civil liability for damages suffered by him or his staff as a result of performance of this agreement, provided such damages are not the result of serious and deliberate misconduct on the part of the other party or his staff.

The National Agency of the Netherlands, the European Commission or their staff shall not be held liable in the event of a claim under the agreement relating to any damage caused during the execution of the mobility period. Consequently, the National Agency of the Netherlands or the European Commission shall not entertain any request for indemnity of reimbursement accompanying such claim.

Article 2: Termination of the agreement

In the event of failure by the participant to perform any of the obligations arising from the agreement, and regardless of the consequences provided for under the applicable law, the institution is legally entitled to terminate or cancel the agreement without any further legal formality where no action is taken by the participant within one month of receiving notification by registered letter.

If the participant terminates the agreement before its agreement ends or if he/she fails to follow the agreement in accordance with the rules, he/she shall have to refund the amount of the grant already paid.

In case of termination by the participant due to "force majeure", i.e. an unforeseeable exceptional situation or event beyond the participant's control and not attributable to error or

negligence on his/her part, the participant shall be entitled to receive the amount of the grant corresponding to the actual duration of the mobility period as defined in article 2.2. Any remaining funds shall have to be refunded.

Article 3: Data Protection

All personal data contained in the agreement shall be processed in accordance with Regulation (EC) No 45/2001 of the European Parliament and of the Council on the protection of individuals with regard to the processing of personal data by the EU institutions and bodies and on the free movement of such data. Such data shall be processed solely in connection with the implementation and follow-up of the agreement by the sending institution, the National Agency and the European Commission, without prejudice to the possibility of passing the data to the bodies responsible for inspection and audit in accordance with EU legislation (Court of Auditors or European Antifraud Office (OLAF)).

The participant may, on written request, gain access to his personal data and correct any information that is inaccurate or incomplete. He/she should address any questions regarding the processing of his/her personal data to the sending institution and/or the National Agency. The participant may lodge a complaint against the processing of his personal data with the [national supervising body for data protection] with regard to the use of these data by the sending institution, the National Agency, or to the European Data Protection Supervisor with regard to the use of the data by the European Commission.

Article 4: Checks and Audits

The parties of the agreement undertake to provide any detailed information requested by the European Commission, the National Agency of the Netherlands or by any other outside body authorised by the European Commission or the National Agency of the Netherlands to check that the mobility period and the provisions of the agreement are being properly implemented.

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~~This Agreement specifies the rights and responsibilities of the above-named Contracting Entity (CE) and Subdistributing Agency as participants in the Commodity Supplemental Food Program (CSFP). By signing this Agreement, both parties are bound by its terms and conditions, unless terminated with 30 days' written notice by either party. This Agreement may be terminated for cause by either party, by mutual consent of both parties, or solely by the Subdistributing Agency without cause or mutual consent.~~

Rights and Responsibilities of the Contracting Entity

The CE shall fulfill the following responsibilities:

- ~~1. Comply with all applicable regulations in Title 7, Parts 250 and 247 of the Code of Federal Regulations and guidance issued by TDA and USDA, and ensure that subdistributing agencies do so.~~

- e handling, distribution, and use of USDA Foods; eligibility criteria; client rights (including civil rights requirements); complaint procedure; compliance review procedures; the processing of applications or requests for food packages; and procedures for food safety and food recalls.
3. Offer training sessions and technical assistance at a time and place that is convenient to the subdistributing agency.
 4. Provide a copy of the *Participant Application* (Form H1504) to the subdistributing agency without charge.
 5. Provide a copy of the current income guidelines to the subdistributing agency.
 6. Ensure that all USDA Foods are distributed to participants without regard to race, color, national origin, sex, or disability.
 7. Compile data, maintain records, and submit reports as required to permit effective enforcement of nondiscrimination laws, regulations, policies, instructions, and guidelines; and collect such records from subdistributing agency, as applicable.
 8. Collect, from the subdistributing agency, certain data (including, but not limited to, reports about the number of individuals served).
 9. Ensure that sites protect applicants' and participants' information stored on information technology systems.
 10. Avoid charging the subdistributing agency any fees for the administration of CSFP.
 11. Ensure that all food packages containing USDA Foods comply with CSFP requirements.
 12. Monitor the subdistributing agency's distribution of USDA Foods to ensure compliance with CSFP requirements.
 13. Obtain the signature of the subdistributing agency's representative showing the receipt of USDA Foods, and maintain the receipts, as well as other CSFP records, for three years from the close of the fiscal year to which they pertain, or until claims actions, audits, or investigations are resolved. Records include, but are not limited to, the following: 1) this Agreement and 2) documentation of the receipt, inventory, and disposal of USDA Foods.
 14. Ensure that the subdistributing agency does not require, solicit, or accept payment from applicants, participants, or sites in money, materials, or services for USDA Foods packages.
 15. Ensure that the subdistributing agency makes clear that participants are not required to cooperate with activities unrelated to the distribution of USDA Foods. Activities include the following: contribute money, sign petitions, or converse with a person conducting such activity; belong to, attend meetings of, or pay dues to any organization.
 16. Ensure that unrelated activities do not disrupt the distribution of USDA Foods.

Rights and Responsibilities of the Subdistributing Agency

The subdistributing agency shall fulfill the following responsibilities:

1. Comply with all applicable regulations in Title 7, Parts 250 and 247 of the Code of Federal Regulations and guidance issued by the CE, TDA, and the USDA, and ensure that sites do so.
2. Comply with all requirements for receiving, handling, transporting, and storing USDA Foods.
3. Ensure that sites comply with all requirements for receiving, handling, transporting, storing, and preparing USDA Foods.

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- civil rights requirements); complaint and administrative review procedures; the processing of applications or requests for food packages; and procedures for food safety and food recalls.
5. Collect, from the site, records that show the data and method used to determine the number of individuals served; and provide the data to the CE upon request.
 6. Compile data, maintain records, and submit reports as required to permit effective enforcement of nondiscrimination laws, regulations, policies, instructions, and guidelines; and collect such records from the site, as applicable.
 7. Attend training sessions required by the CE.
 8. Offer training sessions and technical assistance to sites at a time and place that is convenient to the sites.
 9. Provide a copy of the *Participant Application* (Form H1504) to sites without charge.
 10. Provide a copy of the current income guidelines to sites.
 11. Ensure that all USDA Foods are distributed to participants and sites without regard to race, color, national origin, sex, or disability.
 12. Avoid charging sites any fees for the administration of CSFP.
 13. Ensure that all food packages containing USDA Foods comply with CSFP requirements.
 14. Monitor each site's distribution of USDA Foods to ensure compliance with CSFP requirements and do so during each site's normal hours of operation.
 15. Maintain records to document the receipt, disposal, and inventory of USDA Foods for three years from the close of the fiscal year to which they pertain, or longer if records are related to unresolved claims actions, audits, or investigations.
 16. Obtain the signature of the site's representative showing the receipt of USDA Foods, and maintain the receipts, as well as other program records, for three years from the close of the fiscal year to which they pertain, or until claims actions, audits, or investigations are resolved. Records include, but are not limited to, the following: 1) this Agreement and 2) documentation of the receipt, inventory, and disposal of USDA Foods.
 17. Do not require, solicit, or accept payment from sites in money, materials, or services for USDA Foods packages.
 18. Ensure that each site does not require, solicit, or accept payment from applicants or participants in money, materials, or services for USDA Foods packages.
 19. Make clear that sites and participants are not required to cooperate with activities unrelated to the distribution of USDA Foods. Activities include the following: contribute money, sign petitions, or converse with a person conducting such activity; belong to, attend meetings of, or pay dues to any organization.
 20. Ensure that unrelated activities do not disrupt the distribution of USDA Foods at the subdistributing agency and at each site.
 21. Provide to the CE certain data (including, but not limited to, reports about the number of food packages distributed, inventory remaining after completing distributions within a month, racial/ethnic data) pertaining to the subdistributing agency and to each site.
 22. Ensure that each site distributes the appropriate USDA Foods package to a CSFP participant based on his or her eligibility and in compliance with CSFP requirements.
 23. Ensure that sites determine the eligibility of applicants who apply for USDA Foods assistance in compliance with CSFP requirements.
 24. Maintain the confidentiality and security of participant information, including information stored on information technology systems, and ensure that sites do so.

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- s and records.
26. Report fraud or misuse of program funds to the CE immediately, and ensure that sites report fraud or misuse of program funds immediately to the subdistributing agency.
27. Do not sell USDA Foods, and ensure that sites do not sell USDA Foods.
28. Ensure that each site returns unused USDA Foods to subdistributing agency if they will not be distributed to clients the following month.
29. Ensure that each site helps applicants complete applications, when necessary.
30. Display prominently, for the applicant, participant, and site viewing, USDA's "...And Justice For All" poster.
31. Evaluate sites to determine if reasonable accommodations are being made for providing adequate service to physically impaired or disabled individuals.

Certification

- We, the undersigned, do hereby make and enter into this Agreement. By so doing, we certify that the information contained in this document is true and correct to the best of our knowledge and is provided for the purpose of obtaining federal assistance.
- We do mutually agree to ensure compliance with federal civil rights laws that prohibit discrimination on the basis of race, color, national origin, sex (including gender identity and sexual orientation), disability, age, or reprisal or retaliation for prior civil rights activity.
- We do mutually agree to maintain responsibility for any loss resulting from improper distribution, or improper storage, care, or handling of USDA Foods.
- We do mutually agree to maintain responsibility for any misuse of program funds.
- We do mutually agree to comply with the Commodity Supplemental Food Program (7 CFR Part 247, as amended); Donation of Foods for Use in the United States, Its Territories and Possessions and Areas under Its Jurisdiction (7 CFR Part 250, as amended); Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards (2 CFR Part 200); and state policies and procedures as issued and amended by TDA. We understand that the deliberate misrepresentation or withholding of information may result in prosecution under applicable state and federal statutes.

Name of Subdistributing Agency Official (type or print) _____		
Title of Subdistributing Agency Official _____	_____ Signature of Subdistributing Agency Official	_____ Date
Name of CE Representative (type or print) _____		
Title of CE Representative _____	_____ Signature of CE Representative	_____ Date